

25STCV31895 25STCV31895

County: los-angeles

Division: Civil Law and Motion

Department: 310

Hearing date: 2026-07-01

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Case Number: 25STCV31895 Hearing Date: July 1, 2026 Dept: 310

Tentative Ruling

Judge Kevin C. Brazile

Department 310

Hearing Date: July 1, 2026

Case Name: Shapiro v. Amli Management Company, et al.

Case No.: 25STCV31895

Matter: Demurrer

Moving Party: Defendants Amli Management Company and PPF Amli 4242 Via Marina,

LP

Responding Party: Plaintiff Lauren Shapiro

Notice: OK

Ruling: The Demurrer is sustained in part, without leave to amend.

Moving party to give notice.

The Court encourages all parties to appear remotely via LA CourtConnect. If submitting on the Court's tentative ruling, please follow the instructions provided above.

This is a landlord-tenant dispute.

Defendants Amli Management Company and PPF Amli 4242 Via Marina, LP demur to the third, sixth, and seventh causes of action in the FAC for uncertainty and failure to state sufficient facts.

When considering demurrers, courts read the allegations liberally and in context, and “treat the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” (Serrano v. Priest (1971) 5 Cal.3d 584, 591.) “A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed. The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action.” (Hahn v. Mirda, (2007) 147 Cal.App.4th 740, 747.) It is error “to sustain a demurrer without leave to amend if the plaintiff shows there is a reasonable possibility any defect identified by the defendant can be cured by amendment.” (Aubry v. Tri-City Hospital Dist., (1992) 2 Cal.4th 962, 967.)

The Demurrer is sustained, without leave to amend, as to the sixth cause of action for violation of Civ. Code § 1942.4, which Plaintiff agrees to dismiss.

The Demurrer is overruled as to the negligence and NIED claims, which are plainly premised on Defendants' failure to remediate the subject premises. Further, Defendants' statute of limitations argument is defeated by the relation-back doctrine as it pertains to the filing of the initial Complaint in October 2025.

In sum, the Demurrer is sustained as to the sixth cause of action, but is otherwise overruled. Leave to amend is denied.

An answer is to be filed within 10 days.

Moving party to give notice.